

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2015-4103

ORDER OF SUMMARY SUSPENSION

TO: MARY MARTHA WATTERS, LPC 5933

The State Board of Licensed Professional Counselor Examiners (the "Board"), having reviewed all available information as to the matters referenced below, HEREBY FINDS:

1. Mary Martha Watters ("Respondent") was licensed to practice as a licensed professional counselor ("LPC") in the State of Colorado on December 6, 2010, being issued registration number LPC 5933.

2. The Board has jurisdiction over Respondent and the subject matter herein pursuant to the Colorado Mental Health Practice Act, §§ 12-43-101 *et seq.*, C.R.S.

3. On or about January 15, 2016, the Board reviewed information regarding Respondent's failure to comply with requirements related to the Continued Competency Program.

4. Based on review of the information provided, the Board determined that it had reasonable cause to believe Respondent is unable to practice as an LPC with reasonable skill and safety to clients.

5. On or about January 29, 2016, pursuant to § 12-43-224(2)(d), C.R.S., the Board issued its "Order Pursuant to § 12-43-224(2)(d)" ("Order"), requiring that Respondent submit to a mental status examination ("MSE") conducted by a Board-approved examiner, Peer Assistance Services ("PAS"), in case 2015-4103.

6. Respondent is deemed to have consented to submit to mental or physical examinations when directed in writing by the Board pursuant to § 12-43-224(2)(e), C.R.S.

7. The Order was mailed via USPS first class mail on January 29, 2016, to Respondent's address of record with the Board. The Order was also e-mailed to Respondent to an e-mail address Respondent had previously used to communicate with Board staff.

8. The Order required Respondent to contact PAS within seven (7) days of receipt of the same to schedule the MSE.

9. The Order further required that the MSE be conducted within forty-five (45) days of the issuance thereof.

10. The Board reconsidered the matter at its regularly-scheduled meeting on July 7, 2017, meeting.

11. As of July 7, 2017, Respondent has failed to submit to an MSE.

12. Respondent has not shown good cause for her failure to submit to the Board-ordered MSE.

13. The Board finds that Respondent has failed to comply with the Order of the Board directing Respondent to submit to a mental or physical examination.

14. The Board hereby summarily suspends Respondent's license to practice as an LPC pursuant to § 12-43-224(2)(c)(II)(C), C.R.S.

15. Respondent may not engage in the practice of psychotherapy in the State of Colorado or hold herself out as able to practice psychotherapy in the State of Colorado while her license is summarily suspended.

16. Respondent's license to practice as an LPC is summarily suspended until Respondent submits to the required examination.

17. Any violation of this Order constitutes a violation of a lawful Board Order and may be grounds for further proceedings. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with this Order.

18. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.

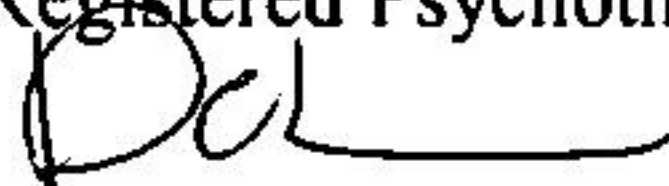
19. This Order shall be a public record in the custody of the Board.

20. This Order shall be effective as a final agency order of the Board upon mailing a fully executed copy by first class mail to Respondent at Respondent's address of record with the Board or electronically mailing to Respondent's last known e-mail address of record with the Board.

THEREFORE, pursuant to the above, IT IS HEREBY ORDERED that, pursuant to § 12-43-224(2)(c)(II)(C) C.R.S., the license of Mary Martha Watters to practice as an LPC in the State of Colorado is summarily suspended.

DATED and SIGNED this 12th day of July, 2017.

On behalf of the Colorado State Board of
Registered Psychotherapists,



Darcie Magnuson
Program Director